



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 7840
(SIXTH REVISION)

JUN 28 2001

EXPIRATION DATE: May 31, 2003

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Lockheed Martin Aeronautics Company
Fort Worth, Texas
(Former grantee: Lockheed Martin Tactical Aircraft Systems)
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of a Division 1.4S explosive and a nonflammable compressed gas in the same package. This exemption provides no relief from any regulation other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.62, § 173.302, § 176.83.
5. BASIS: This exemption is based on the application of Lockheed Martin Aeronautics Company dated May 11, 2001, submitted in accordance with § 107.109 and supplemental information dated June 13, 2001.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Release devices, explosive	1.4S	UN0173	II
Oxygen, compressed	2.2	UN1072	N/A

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7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a fiberboard shipping container shown on Douglas Aircraft Company Drawing C-8016 (sheets 1-5), dated September 2, 1976, or a strong wooden box, as authorized in § 173.62(c) PI 134 and shown on Douglas Aircraft Company Drawing C-8016 (sheets 1-7), dated June 14, 1978.

All drawings are on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). The oxygen packed with the explosive release device must be contained in a DOT Specification 3AA2100 steel cylinder having a maximum capacity of 25 cubic inches.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. For water transportation the packages covered by this exemption must be segregated from other materials as required by § 176.83 only in accordance with the requirements for Division 1.4S explosives.

d. Transportation of oxygen is only authorized by aircraft when in accordance with § 172.102(c)(2) Special Provision A52 and 175.85(h) and (i).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, and cargo aircraft only.10. MODAL REQUIREMENTS:

A current copy of this exemption must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this exemption. The shipper must furnish a current copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

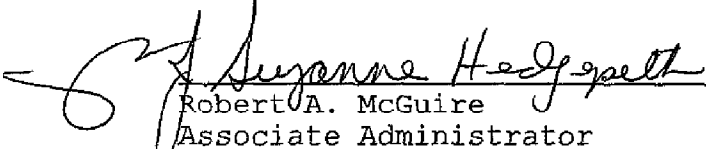
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving fire, explosion or loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:


Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

JUN 28 2001

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

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The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, SW. Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: sln